

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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RANDY MCNAIR, as proposed Administrator
of the Estate of **TONIE NICOLE LOPEZ** a/k/a
TONIE WELLS, deceased, and on behalf of,
"P.R." the infant daughter of RANDY MCNAIR
and TONIE NICOLE LOPEZ,

Index No.:

Date Purchased:

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER WAEEL
JABER, POLICE OFFICER WING HONG LAU,
Captain Jane or John Doe commanding
Officer of the 77th Precinct, Sergeant Jane
or John Doe, supervising officer of Police
Officers Jaber & Lau, and Police Officer
Jane or John Doe the 77th Precinct's
Domestic violence officer,

Defendants.

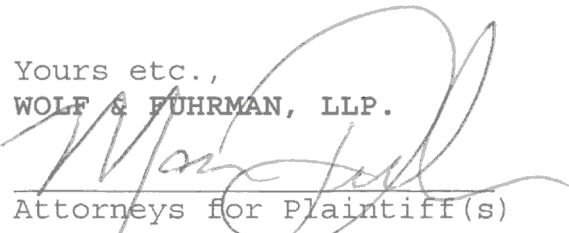
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To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action
and to serve a copy of your answer, or, if the complaint is not
served with this summons, to serve a notice of appearance, on the
Plaintiff's Attorney(s) within 20 days after the service of this
summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered
to you within the State of New York); and in case of your failure
to appear or answer, judgment will be taken against you by default
for the relief demanded in the complaint.

Dated: Bronx, New York
March 14, 2019

Yours etc.,
WOLF & FUHRMAN, LLP.


Attorneys for Plaintiff(s)
BY: MARVIN D. FUHRMAN, ESQ.
1453 Webster Avenue
Bronx, New York 10456
(718) 293-0980

Defendant's address:

THE CITY OF NEW YORK
Zachary W. Carter, Esq.
Corporation Counsel
New York City Law Department
100 CHURCH STREET
NEW YORK, NEW YORK 10007
Claim# 2018P1009050
File# 2018-018482

THE NEW YORK CITY POLICE DEPARTMENT
POLICE OFFICER Wael Jaber
POLICE OFFICER Wing Hong Lau
CAPTAIN JANE or JOHN DOE
SERGEANT JANE or JOHN DOE
PO JANE or JOHN DOE
c/o ZACHARY W. CARTER, ESQ.
Corporation Counsel
New York City Law Department
100 Church Street
New York, New York 10007
File # 2018-018482

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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RANDY MCNAIR, as proposed Administrator
of the Estate of TONIE NICOLE LOPEZ a/k/a
TONIE WELLS, deceased, and on behalf of,
"P.R." the infant daughter of Randy McNair
and Tonie Nicole Lopez,

Plaintiffs,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER WAEL
JABER, POLICE OFFICER WING HONG LAU,
Captain Jane or John Doe commanding
Officer of the 77th Precinct, Sergeant Jane
or John Doe, supervising officer of Police
Officers Jaber & Lau, and Police Officer
Jane or John Doe the 77th Precinct's
domestic violence officer.

Defendants.

-----X
Plaintiffs, by their attorneys WOLF & FUHRMAN, LLP alleges the
following as and for their verified complaint all upon information
and belief;

1. At all times relevant herein the plaintiffs were and
continue to be residents of the State of New York.

2. At all times relevant herein the plaintiffs reside at
2228 7th Avenue, New York, New York 10027.

3. The plaintiff Randy McNair is the natural biological
father, and the decedent TONIE NICOLE LOPEZ was the natural
biological mother of the infant plaintiff P.R.

4. The infant plaintiff P.R. was born on March 10, 2016.

5. That upon information and belief at all times hereafter mentioned, the defendant, CITY OF NEW YORK (hereinafter referred to as "CITY"), is a municipal corporation duly organized and existing under and pursuant to the laws of the State of New York.

6. That prior to the commencement of this action and on or before March 23, 2018, plaintiffs duly filed with the Comptroller of the City of New York a verified Notice of Claim setting forth the time and place of where the accident occurred; the cause of said accident; the nature and extent of the injuries and damages sustained.

7. The said Notice of Claim was presented within ninety (90) days after the cause of action herein occurred.

8. That a 50-H municipal hearing of the plaintiff Randy McNair was conducted on August 14, 2018.

9. More than thirty (30) days have elapsed since such presentation of said claim and the defendant CITY, has not adjusted same and has failed and neglected to make any payment of such claim and cause of action.

10. This action is commenced within one (1) year and ninety (90) days after the day of the occurrence herein.

11. That at all times hereinafter mentioned, the CITY, its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York, (hereafter NYPD) including all the police officers thereof.

12. That at all times hereinafter mentioned, the CITY, its agents, servants and employees operated, maintained and controlled the NYPD including what was designated the 77th precinct located at 127 Utica Avenue Brooklyn, New York.

13. That at all times hereinafter mentioned and on or about December 27, 2017 Wael Jaber was employed by the Defendant City, NYPD as a police officer.

14. That at all times hereinafter mentioned and on or about December 27, 2017 Wing Hong Lau was employed by the Defendant City, NYPD as a police officer.

15. That at all times hereinafter mentioned, and on or about December 27, 2017 the defendant Wael Jaber as part of his employment as an NYPD police officer was assigned to the 77th precinct.

16. That at all times hereinafter mentioned, and on or about December 27, 2017 the defendant Wing Hong Lau as part of his employment as an NYPD police officer was assigned to the 77th precinct.

17. That at all times hereinafter mentioned and on or about December 27, 2017 Captain Jane or John Doe was employed by the Defendant City, NYPD as a commanding officer of the 77th precinct.

18. That at all times hereinafter mentioned, and on or about December 27, 2017 Sargent Jane or John Doe was employed by the Defendant City, NYPD as a supervising officer to Wael Jaber and

Wing Hong Lau.

19. That at all times hereinafter mentioned and on or about December 27, 2017 Sargent Jane or John Doe was employed by the Defendant City, NYPD as the 77th precincts domestic violence officer.

20. That at all times hereinafter mentioned and on or about December 27, 2017 the defendant City through the NYPD was required to monitor and protect all persons who had been reported as victims of domestic violence and abuse.

21. That at all times hereinafter mentioned and on or about December 27, 2017 the defendants City through the NYPD was required to maintain lists of all persons/families who had been reported as victims of domestic violence and abuse on a command high propensity list, (HPL) and Child at Risk List, (CAR) in the the Domestic Violence Information Management System, (DVIMS) database maintained by the NYPD.

22. That based upon information and belief the decedent TONIE NICOLE LOPEZ married Barry Wells sometime in or around April 2017.

23. That based upon information and belief that sometime in the spring of 2017 decedent, TONIE NICOLE LOPEZ now a/k/a TONIE WELLS filed a harassment complaint as against Barry Wells with the defendant NYPD.

24. That on or about September 21, 2017, the decedent TONIE NICOLE LOPEZ a/k/a TONIE WELLS was violently attacked by her

husband Barry Wells.

25. That on or before September 21, 2017 the defendant City through the NYPD arrested Barry Wells for assaulting, choking and injuring the decedent, TONIE NICOLE LOPEZ a/k/a TONIE WELLS.

26. That on or sometime after September 21, 2017 Barry Wells was released from custody on bail, and an order of protection issued by the Manhattan Criminal Court requiring Barry Wells to cease all contact with TONIE NICOLE LOPEZ a/k/a TONIE WELLS.

27. That based upon information and belief, and the aforementioned harassment complaint and order of protection the decedent TONIE NICOLE LOPEZ a/k/a TONIE WELLS, and her minor daughter P.R. were known to the defendant NYPD as victims of domestic abuse, and their information entered into the defendant NYPD Domestic Violence Information Management System database, or DVIMS.

28. That based upon information and belief, as a result of identifying the decedent TONIE NICOLE LOPEZ a/k/a TONIE WELLS and her infant daughter P.R. as victims of domestic violence sometime on or before September 2017, and entering the information into the defendant NYYPD DVIMS, the defendant NYPD assigned a domestic violence officer to plaintiff and plaintiff decedent's domestic violence case, to monitor and protect them.

29. That based upon information and belief, and according to the NYPD patrol guide procedure number 202-29, the domestic

violence prevention officer is required to maintain contact with the victims of domestic violence such as the decedent and her infant daughter including but not limited to home visits with the victims of domestic violence.

30. That at all times hereinafter mentioned on December 27, 2017 decedents estranged husband Barry Wells appeared in violation of prior orders of protection at the decedent's home she shared with her infant daughter at 1172 Sterling Place, Brooklyn, New York.

31. That on December 27, 2017 Barry Wells in the presence of her infant daughter P.R. began violently choking and beating TONIE NICOLE LOPEZ a/k/a TONIE WELLS.

32. That on December 27, 2017 at approximately 8:41am, a call was placed to the defendant NYPD through 911 identifying the location of the decedent's building and requesting police be immediately dispatched after someone reporting the decedent TONIE NICOLE LOPEZ screaming, "**help me he is going to kill me**".

33. That on December 27, 2017 at approximately 8:43am as a result of the 911 call police officers Wael Jaber and Wing Hong Lau from the 77th precinct were dispatched and assigned the ministerial duty to investigate a complaint of harassment with a fight in progress, at 1172 Sterling Place in Brooklyn.

34. That on December 27, 2017 at approximately 8:45am the defendant police officers Wael Jaber and Wing Hong Lau arrived

outside of 1172 Sterling Place in response to being dispatched pursuant to their assigned ministerial duty.

35. That on December 27, 2017 at approximately 8:47am the defendants police officers Wael Jaber and Wing Hong Lau transmitted a radio signal code of, 90-X indicating the complaint of harassment and a fight in progress at that location was, "unfounded", and the 911 operator listed the event as closed.

36. That on December 27, 2017 at approximately 9:51am, a call was received by a 911 operator reporting an unconscious female at the base of a staircase with the sound and presence of a baby crying at 1172 Sterling Place, and an ambulance was dispatched to the scene.

37. That on the morning of December 27, 2017 sometime after 10:00am TONIE NICOLE LOPEZ was declared dead.

38. Barry Wells was arrested and is currently incarcerated having been charged with the murder of TONIE NICOLE LOPEZ.

39. On December 28, 2017 the defendants Wael Jaber and Wing Hong Lau were suspended by the NYPD for failing to get out of their motor vehicle to perform their assigned ministerial duty to investigate and prevent the death of TONIE NICOLE LOPEZ.

AS AND FOR A FIRST CAUSE OF ACTION

40. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "39" of this complaint with the same force and effect as though fully set forth

here at length.

41. That on or about the 27th day of December 2017, the decedent TONIE NICOLE LOPEZ was violently attacked, beaten, choked, thrown down stairs in the presence of the infant plaintiff, "P.R." all of which resulted in TONIE NICOLE LOPEZ sustaining conscious pain and suffering, awareness of her impending death and which led to her tragic, untimely wrongful death at the age of twenty-two.

42. That the aforesaid occurrence, the conscious pain and suffering and wrongful and untimely death of TONIE NICOLE LOPEZ, and severe psychological damages among other damages to the infant plaintiff, "P.R." was caused as a result of the negligence, recklessness and gross dereliction of ministerial duty of officers Wael Jaber, Wing Hong Lau, to the consequences measured and foreseen resulting from the dereliction of their ministerial duty of these defendants without any negligence on the part of the plaintiffs contributing thereto.

43. That the said occurrence was wholly caused as a result of the carelessness, recklessness, negligence, and gross dereliction of ministerial duty on the part of the defendants, their servants, agents and/or employees in the negligent manner in which the NYPD, and officers Wael Jaber, Wing Hong Lau, the assigned domestic violence officer, and including but not limited to their supervisors in their capacity as New York City Police Officers failing to properly respond to a 911 call reporting someone

screaming, *"help me he is going to kill me"*, by failing to get out of their police vehicle, failing to take any steps whatsoever to investigate a reported violent criminal act, by transmitting a code 90-X that the complained of violent act was unfounded when the defendants had no basis whatsoever to transmit such a code doing nothing to determine the validity of the previously received 911 call and in failing to discharge the duties and responsibilities of New York City Police Officers.

44. The defendants, were further negligent in failing to discharge their duties in their supervision and oversight of the officers responding to the scene having in the ordinary course of their duties known, or should have known that there was no plausible way the responding officers could have conducted any kind of investigation into the 911 call based upon an insufficient time having passed between the responding police officers arriving at the scene and their transmission of a code 90-X, indicating the complaints were unfounded.

45. That based upon information and belief, the defendants Wael Jaber and Wing Hong Lau with the knowledge, consent and/or acquiescence of their supervisors did not exit their police vehicle on the morning of December 27, 2017 due to the extreme record breaking artic cold that had descended on the New York City area negligently, and carelessly placing their personal comfort over their ministerial duties and responsibilities of police officers to

investigate and protect the decedent.

46. That by reason of the negligence, recklessness, and gross dereliction of ministerial duty the plaintiffs were caused to sustain severe, serious, permanent painful and psychological injuries including but not limited in the case of TONIE NICOLE LOPEZ fear of impending death, conscious pain and suffering as a result of being beaten, choked and thrown down stairs, and ultimately a painful untimely and wrongful death that would have never occurred had the defendants properly discharged their sworn ministerial duties as police officers and supervising police officers, and in the case of the infant plaintiff "P.R." severe and permanent psychological damages in having to witness her mother's beating and death, and being within the zone of danger, and in being deprived of her mother's love and guidance from such an early age onward for the rest of her life.

47. As a result of the foregoing plaintiff decedent's estate and infant daughter incurred expenses for her medical care and funeral and her next of kin were deprived of the parental services, support, services and estate accumulations all to their pecuniary damage and are therefore seeking an award of money damages.

48. That by reason of the foregoing, the plaintiffs have been damaged by the defendants in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

49. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "48" of this complaint with the same force and effect as though fully set forth here at length.

50. The defendant City and New York City Police Department its agent servants and/or employees were aware through the New York Police Departments CompStat Year End reports, 2007-2016 that by 2016 11.6% of all crimes committed in New York City were related to domestic violence, with domestic violence accounting for two in every five reported assaults citywide.

51. The defendant City and New York City Police Department its agents, servants and/or employees were aware of the dramatic increases in reported domestic violence crimes throughout New York City, and as a result defendants established early victim engagement programs requiring each police precinct throughout the five boroughs to employ domestic violence prevention officers and/or domestic violence sergeants' to maintain contact with domestic violence complainants through home visits and telephone calls to victims of domestic violence and document/record all such contact in the Domestic Violence Information Management System or DVIMS, including but not limited to entering all known victims of domestic violence in the command high propensity list or HPL, and the Child at Risk List, or CAR.

52. The defendant City and New York City Police Department

its agents, servants and/or employees through its policies and procedures of establishing the requirement of monitoring and protecting victims of domestic violence as early as possible upon learning of victims including children who are victims of domestic violence made explicit and implicit promises of protection to victims of domestic violence, and as such domestic violence victims were entitled to rely upon the protections afforded them by defendant City and New York City Police Department, its agents, servants and/or employees.

53. The defendant City and New York City Police Department its agents, servants and/or employees including but not limited to the domestic violence prevention officer and domestic violence sergeant were required by the NYPD Patrol Guide to maintain Domestic Violence Home Visit Checklists for each known victim of domestic violence reported in DVIMS, and/or HPL, and/or CAR data bases maintained by the defendants, as further evidence of defendants having established a special duty to protect victims of domestic violence.

54. Upon information and belief and at all times hereinafter mentioned the decedent, TONIE NICOLE LOPEZ sometime in the spring of 2017 obtained a valid Court Order of Protection as against Barry Wells.

55. Upon information and belief and at all times hereinafter mentioned in 2017 the defendant New York City Police Department

arrested Barry Wells based upon violent acts he violently inflicted upon the body of TONIE NICOLE LOPEZ.

56. Upon information and belief and at all times hereinafter mentioned upon being paroled subsequent to his arrest a New York City Criminal Court issued an order of protection requiring Barry Wells to cease any and all contact with TONIE NICOLE LOPEZ and her daughter, "P.R.".

57. Upon information and belief and at all times hereinafter mentioned the defendant New York City Police Department, its agents, servants and/or employees were made aware of the order of protection requiring Barry Wells to cease all contact with both TONIE NICOLE LOPEZ, and her daughter, "P.R.".

58. Upon information and belief, the defendant New York City Police Department were required based upon its own policies and procedures to designate TONIE NICOLE LOPEZ, and her daughter, "P.R." as victims of domestic abuse, and enter their information in their DVIMS data base.

59. Upon information and belief, the defendant New York City Police Department based upon its own policies and procedures designated TONIE NICOLE LOPEZ, and her daughter, "P.R." as victims of domestic abuse, and entered their information in their DVIMS data base.

60. Upon information and belief, the defendant New York City Police Department failed to follow its own policies and procedures

and designate TONIE NICOLE LOPEZ, and her daughter, "P.R." as victims of domestic abuse, and enter their information in their DVIMS data base.

61. Upon information and belief, the defendant New York City Police Department through its agents, servants and/or employees undertook a special duty to protect TONIE NICOLE LOPEZ and her infant daughter, "P.R." from Barry Wells, that TONIE NICOLE LOPEZ and her daughter, "P.R." were entitled to, and did so rely upon.

62. That by reason of the failure to protect the plaintiffs, the defendants breached their special duty causing the plaintiffs to sustain severe, serious, permanent painful and psychological injuries including but not limited in the case of TONIE NICOLE LOPEZ fear of impending death, conscious pain and suffering as a result of being beaten, choked and thrown down stairs, and ultimately a painful untimely and wrongful death that would have never occurred had the defendants properly discharged their duties to the plaintiffs, and in the case of the infant plaintiff "P.R." severe and permanent psychological damages in having to witness her mother's beating and death, and being within the zone of danger, and in being deprived of her mother's love and guidance from such an early age onward for the rest of her life.

63. As a result of the foregoing plaintiff decedent's estate and infant daughter incurred expenses for her medical care and funeral and her next of kin were deprived of the parental services,

support, services and estate accumulations all to their pecuniary damage and are therefore seeking an award of money damages.

64. That by reason of the foregoing, the plaintiffs have been damaged by the defendants in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

65. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "64" of this complaint with the same force and effect as though fully set forth here at length.

66. The defendants City and New York City Police Department and their agents, servants and/or employees negligently hired, supervised and retained Wael Jaber.

67. The defendants City and New York City Police Department and their agents, servants and/or employees negligently hired supervised and retained Wing Hong Lau.

68. The defendants City, and New York City Police Department and their agents, servants and/or employees knew, or should have known that Wael Jaber was not competent to perform the duties and undertake the responsibilities of a police officer.

69. The defendants City and New York City Police Department and their agents, servants and/or employees knew, or should have known that Wing Hong Lau was not competent to perform the duties and undertake the responsibilities of a police officer.

70. The defendants City of New York, and New York City Police Department and their agents, servants and/or employees knew, or should have known that police officers assigned to the 77th precinct were not properly performing their ministerial duties, by responding and investigating 911 calls particularly during periods of inclement/cold weather.

71. As a result of the foregoing plaintiff decedent's estate and infant daughter incurred expenses for her medical care and funeral and her next of kin were deprived of the parental services, support, services and estate accumulations all to their pecuniary damage and are therefore seeking an award of money damages.

72. That by reason of the foregoing, the plaintiffs have been damaged by the defendants in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

73. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "72" of this complaint with the same force and effect as though fully set forth here at length.

74. The infant plaintiff, "P.R." was in close proximity to, or within the zone of danger when her mother TONIE NICOLE LOPEZ was beaten, choked and killed on December 27, 2017.

75. As a result of being within the zone of danger the infant plaintiff, "P.R." was caused to undergo severe and permanent

emotional distress, mental suffering and psychological injuries with resulting physical consequences.

76. That by reason of the foregoing, the plaintiff, "P.R." have been damaged by the defendants in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

77. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs "1" through "76" of this complaint with the same force and effect as though fully set forth here at length.

78. That the defendant, City of New York, New York Police Department by assigning PO Wael Jaber and PO Wing Hong Lau, the ministerial duty to investigate a 911 call at 1172 Sterling Place, Brooklyn, New York on December 27, 2017, created and established a special relationship with the victim of the 911 call, which mandated that the police officers investigate and protect the 911 victim, the decedent Tonie Nicole Lopez.

79. The failure of police officers to get out of their car and investigate a 911 call concerning a victim overheard pleading for her life, "*help me he is going to kill me*" is a gross dereliction of their ministerial duty, and/or evidence of gross negligence, in the performance of their ministerial duty and in

violation of NYPD internal protocols.

80. The failure of police officers to get out of their car and investigate was a reckless and wanton indifference to the consequences resulting therefrom and foreseeable.

81. The failure of police offices to get out of their car to investigate what is reported as an ongoing violent crime, and then perjure themselves by transmitting the call as unfounded is a gross disregard for the safety of the decedent, TONIE NICOLE LOPEZ.

82. The conduct of the police officers evinced a wanton disregard for the health and welfare of decedent, since the police officers were aware of an ongoing violent crime and disregarded their ministerial duty to investigate and their special duty to protect plaintiff decedent, TONIE NICOLE LOPEZ.

83. The actions of the defendants described herein were wanton, knowing, and grossly negligent and whose actions were grossly indifferent to police officers ministerial duty to investigate and the special duty undertaken to protect the plaintiffs' decedent, TONIE NICOLE LOPEZ.

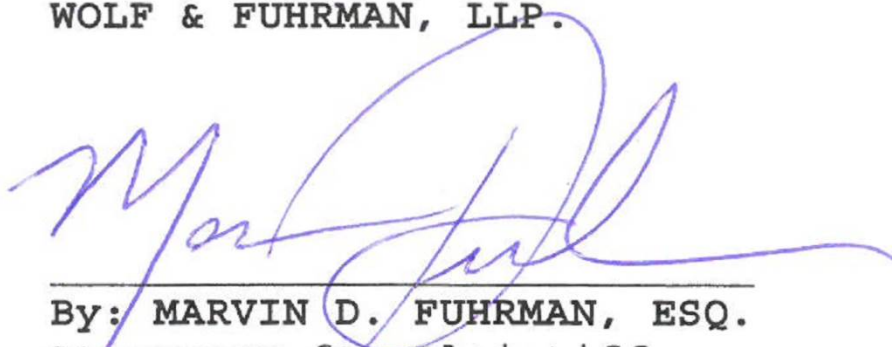
84. As a result of the foregoing plaintiff decedent's estate and infant daughter incurred expenses for her medical care and funeral and her next of kin were deprived of the parental services, support, services and estate accumulations all to their pecuniary damage and the infant plaintiff was caused to sustain emotional damages are therefore seeking an award of money damages.

85. That by reason of the foregoing, the plaintiffs have been damaged by the defendants in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs demands judgment against the defendants on all Causes of Action in an amount that exceeds the jurisdictional limits of all lower courts that might otherwise have jurisdiction, together with costs, interest, disbursements this court may deem just and proper.

Dated: March 14, 2019
Bronx, New York

Yours etc.,
WOLF & FUHRMAN, LLP.



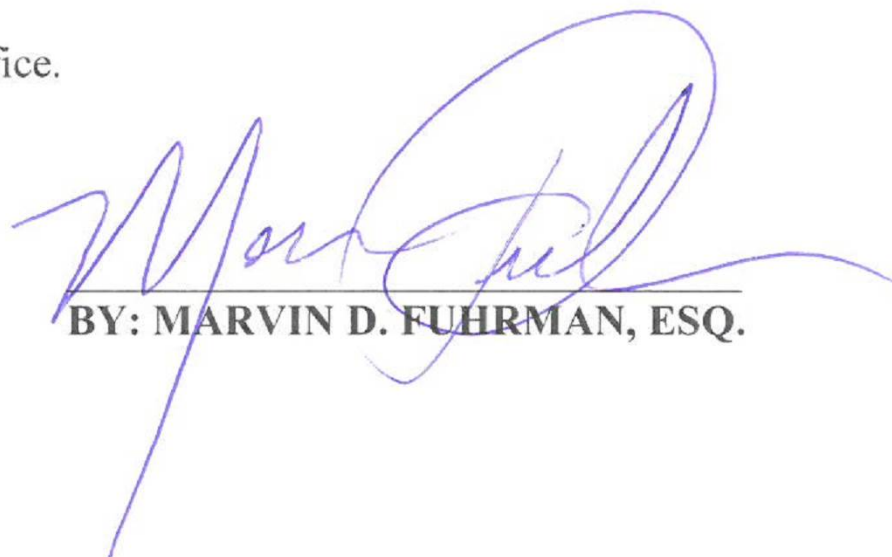
By: MARVIN D. FUHRMAN, ESQ.
Attorneys for Plaintiffs
RANDY MCNAIR & P.R., an infant
1453 Webster Avenue
Bronx, New York 10456
(718) 293-0980

STATE OF NEW YORK)
) ss.:
COUNTY OF BRONX)

VERIFICATION

MARVIN D. FUHRMAN, ESQ., an attorney duly admitted to practice law before the Courts of the State of New York, hereby affirms that he is a partner of the law firm of **WOLF & FUHRMAN LLP**, and that he has read the contents of the foregoing summons and complaint and that it is true of his own knowledge, except as to the matters herein stated to be alleged on information and belief and that as to those matters deponent believes to be true.

That deponent makes this verification because Plaintiffs resides outside of the County where deponent maintains his office.


BY: MARVIN D. FUHRMAN, ESQ.

Dated: Bronx, New York
March 14, 2019

☐ NOTICE OF ENTRY

SIRS: Please take notice that the within is a (certified) true copy of
duly entered in the office on the clerk of the within named
court on 20

Dated: Bronx, New York
20

Yours, etc.
WOLF & FUHRMAN

By:
Attorney(s) for
Office and Post Office Address, Telephone
1453 Webster Avenue
Bronx, New York 10456
(718) 293-0980

To:
Attorney(s) for

☐ NOTICE OF SETTLEMENT

SIRS: Please take notice that an order

of which the within is a true copy will be presented for
settlement to the HON.
one of the judges of the within named Court, at
on 20 at M.

Dated: Bronx, New York
20

Yours, etc.
WOLF & FUHRMAN

By:
Attorney(s) for
Office and Post Office Address, Telephone
1453 Webster Avenue
Bronx, New York 10456
(718) 293-0980

To:
Attorney(s) for

Index No.: Year:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RANDY MCNAIR, as proposed Administrator of the Estate of TONIE NICOLE LOPEZ a/k/a TONIE WELLS, deceased, and on behalf of, "PR" the infant daughter of Randy McNair and Tonie Nicole Lopez,

Claimants,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER WAEL JABER, POLICE OFFICER WING HONG LAU, Captain Jane or John Doe commanding officer of the 77th Precinct, Sergeant Jane or John Doe, supervising officer of Police Officers Jaber & Lau, and Police Officer Jane or John Doe the 77th Precinct's domestic violence officer.

Respondents.

SUMMONS & COMPLAINT

WOLF & FUHRMAN, LLP.

Attorneys for Plaintiff(s)

Randy McNair

Office and Post Office Address, Telephone

1453 Webster Avenue

Bronx, New York 10456

(718)293-0980

To:

Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated, March 23, 2018

Attorneys(s) for Claimants

To the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation or the contentions herein are not frivolous, as that term is defined in Part 130 of the Court Rules.

Dated: Bronx, New York

Signature: _____

Name Printed: Marvin D. Fuhrman, ESQ.